

24STCV06046 24STCV06046

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-04
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Case Number: 24STCV06046 Hearing Date: August 4, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JENNY AVALOS,

Plaintiff,

vs.

CITY OF HOPE MEDICAL FOUNDATION,

Defendant.

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CASE NO.: 24STCV06046

[TENTATIVE] ORDER DENYING MOTION TO CONFIRM
ARBITRATION AWARD

Dept. 506

8:30 a.m.

August 4, 2026

On July 6, 2026, Plaintiff Jenny
Avalos filed a Motion to Confirm Arbitration Award.

A

party may petition the court to confirm, correct, or vacate an arbitration award,
and a response to a petition may request that the court dismiss the petition or
confirm, correct, or vacate the award. (Code
Civ. Proc., §§ 1285, 1285.2.) The petition
or response must set forth (1) the substance of or have attached a copy of the agreement
to arbitrate, (2) the names of the arbitrators, and (3) the award and the written
opinion of the arbitrators, or attach a copy.
(Code Civ. Proc., §§ 1285.4, 1285.6.)

The Court must either confirm the award as made, correct the award and confirm
it as corrected, vacate the award, or dismiss the proceeding. (Code Civ. Proc., § 1286.)

The

motion complies with Code of Civil Procedure section 1285.4. On June 11, 2024, the parties stipulated to arbitration. Michael
D. Mandel served as the arbitrator. A copy of the arbitration award is attached to
the motion.

Defendant

filed a notice of non-opposition, but it did include an Opposition to Claimant's Application for Attorney's Fees and Costs.

Those fees and costs were awarded in the arbitration, and this Court cannot change that award.

Plaintiff

seeks a judgment of \$40,000.00 to resolve Plaintiff's individual PAGA claim, \$44,460.00 in attorney fees, and \$7,860.50 in costs.

However, the arbitrator's award was for only \$44,460 in attorney fees and \$7,860.50 in costs. The other \$40,000.00

is from the parties' settlement agreement, not part of the award, and the Court can only confirm the award as made. (Code Civ. Proc., § 1286.)

In

any event, this Court cannot yet enter judgment. In its June 22, 2024 order, the Court ordered that Plaintiff submit her individual claim under the Private Attorneys General Act of 2004 ("PAGA") to arbitration and stayed Plaintiff's non-individual PAGA claim in this action. Thus, not all of the claims between the parties have been adjudicated.

"The rule has long been well settled that there can be but one final judgment in an action regardless of how many counts the complaint contains or how many issues of law or fact are presented. The purpose of this rule is to prevent piecemeal decisions and multiple appeals." (Lopes v. Capital Co. (1961) 192 Cal.App.2d 759, 762.) Until Plaintiff's non-individual PAGA claim has been resolved, no judgment can be entered between Plaintiff and Defendant.

The

motion to confirm arbitration award is DENIED.

The

stay is LIFTED. A Case Management Conference is scheduled for _____.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 4th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court